







General Terms and Conditions

1. DEFINITIONS

"Booking Form" means the standard booking form accompanying these terms and conditions in which the Customer selects the Services to be provided.

"Company or We"

means The Yacht & Charter Service Company a Division of JLS Yachts LLC and JLS Yachting Training Institute LLC

"Customer or You" means the person who requests services from the Company including any passengers accompanying the Customer.

"Marine Logistics" means Marina Ops, Towing, Diving, Special Projects, Registration and Licensing

"Port Agency" means Clearance, Crew Care, Bunkers, Full service **"Service"** means the required service from the Company, including but not limited to

Provision of Crew, Marine Training, Port Agency, Marine Logistics whether individually or combined

"Vessel" means the Yacht or the Customers own vessel

"Yacht" means the vessel hired from the Company

2. PROVISION OF CREW

If requested by the Customer the Company shall via its agents provide crew for deployment onboard the yacht owned or operated or managed by the Company or its nominated agent.

The Customer shall furnish the Company and its Agent with recruitment instructions with regards to the required manpower complement for a particular Yacht.

All crew deployed will be competent and qualified in accordance with all UAE federal and local legal requirements.

The Company or the designated Agent shall make the necessary arrangements to ensure the timely arrival of the crew at the designated port for the account of the Customer. The Customer shall be responsible to take or arrange Protection and Indemnity (P&I) coverage with a reputable P & I Club, specifically to cover the benefits to which the crew are entitled to.

3. MARINE TRAINING

Tuition is provided on the following basis:

- The vessel is insured by the customer/s for loss, damage and legal liability to third parties.

- The Customer undertakes to secure the consent of the insurers to this agreement. - A Customer that seeks own boat tuition will be made aware of or sent a document detailing equipment required on the boat. It's a condition of the booking that the customer's boat satisfies the conditions detailed. Safety equipment can be bought through the Company at a fee to be agreed.

- The Company is not responsible for any mechanical / electrical or hull breakdown on board the Vessel. If there is a fault with the Vessel and additional days required there will be a further charge of AED a day plus expenses. If there are additional days required due to Customer delays of any kind then this is also chargeable at the agreed rate.

- Quotations are based on facts obtained on the day of quotation. Flights, hotels, trains, taxis, and fuel prices may vary. Expenses are to be paid in advance.

- If there are additional days required due to Customer delays of any kind then this is also chargeable at the agreed rate.

4. PORT AGENCY, MARINE LOGISTICS & PROFESSIONAL SERVICES

If the Company is requested to provide Port Agency or Marine Logistics or Professional Services for a Customer the same will be provided in accordance with the Terms and Conditions set out herein, with any special conditions noted on the booking form.

The Company will supply the relevant qualified personal depending on the nature of the Service requested and provided.

The Company is not responsible for the terms and conditions of any third party in supplying any part of the Services and the Customer must adhere to the third party's terms and conditions as provided by the Company to the Customer.

In the provision of the Professional Services the Company does not warrant the terms and conditions that will be offered relevant to the Service by the third party supplier.

5. CUSTOMER OBLIGATIONS

The Customer must provide all necessary paperwork to enable the Company to provide the Services, the Company will advise on booking the Service the paperwork required from the Customer.

6. SKIPPER'S DECISIONS Decisions made by the Skipper are final in respect of the safety of the Vessel and the well being of the crew. In exceptional circumstances the Skipper may instruct you to leave the vessel in which-case you will not be entitled to any refund of fee or reimbursement of any other expense.

7. SWIMMING

It is strongly recommended that YOU are able to swim. For certain Services the Customer must be able to swim or will be advised that the Service cannot be provided for safety reasons.

The Customer is responsible for notifying the Company on booking of the fact that they or any of the persons they are booking for cannot swim.

8. MEDICAL FITNESS

The Customer must be fit and healthy to take advantage of the Service, unless confirmed by the Company that this requirement does not apply. If requested by the Company the Customer must provide a medical fitness certificate from his/her Doctor.

9. INSURANCE

9.a. The Customer is responsible at all times for fully insuring the Vessel and its equipment (including but not limited to the vessel, its equipment, machinery, accessories, personal effects, tenders, support vessels, motors) and for liability for loss of or damage to property and injury, illness or death of any party.

9.b. For Sea Deliveries, Charters, or any other vessel on which We provide Skipper or Crew the following apply:

1. All Risks Hull and Machinery and Third Party liability for cover at least equivalent to the Institute Yacht Clauses CL 328

2. The insured Value of the vessel and its equipment and machinery including tenders and support vessels to be not less than the replacement cost thereof

3. The Third Party limit to be not less than AED1,000,000.00 any on loss

4. Such insurance policy must be endorsed to note JLS Yachts LLC and JLS Yachting Training Institute LLC, its skippers, crew and other personnel as Joint insured and the policy to contain a waiver of subrogation in favour of JLS Yachts LLC and JLS Yachting Training Institute LLC, its skippers, crew and other personnel

5. For vessels with a maximum designed speed of more than 17 knots, such policy must be endorsed to delete clause 5.1 on the Institute Yacht Clauses. The owner to provide evidence of such insurance prior to the commencement of the contract

10. SUB-CONTRACTING

The Company shall have authority to appoint sub-agents to perform Services on behalf of the Customer, including such Services as may be subject to these Conditions, providing the sub-agent has the appropriate insurance to provide the Services.

11. CONTRACT

The following terms and conditions will be incorporated into every contract between the Company and the Customer (YOU) By making a deposit/full payment YOU will be accepting our terms and conditions both for YOU and for all members of your party. The contract will be construed in accordance with the Law of Dubai, United Arab Emirates and it is agreed that YOU and WE will submit to the jurisdiction of the Dubai courts. 12. BOOKING Bookings will be made on the form provided and must be accompanied by a full payment of the total cost stated on the invoice. Cheques made payable to the Company or payment by direct Bank Transfer.

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13. CANCELLATION BY US

We reserve the right to cancel the booking at such a time that if all other options are exhausted we will refund you all sums already paid or offer an alternative course date. If adverse weather prevents the start of or curtails the course / delivery, alternative dates will be offered but no refund made. Refunds are only limited to the course fee, no travel or out of pocket expenses will be refunded.

14. CANCELLATION BY YOU

You may cancel your booking at any time provided that the cancellation is made by the person who signed the booking form and is communicated to the Company in writing. Cancellation will be effective from the date it is received by the Company. As this incurs administrative charge of AED will be charged and we will retain your deposit if you cancel any time between booking and 30 days prior to course commencement. If you cancel within 30 days of course/ delivery commencement we will retain full payment to compensate for the days booked. If we can re sell your place then a partial refund will be made less the administrative fee of AED and difference in the price the slot is sold for.

15. TIME LIMITS

If you have booked a crew, course or delivery with the Company and is fully paid for with dates in the diary and there are delays on your behalf for any reason whether it is ill health or work related e.t.c, there will be a limit of 6 months to re schedule or take the course. After the 6 months no dates will be allocated and no refunds will be due back to you.

16. INDEMNITY

The Company shall not be liable for any loss of or damage to any property, including property of the Customer (including but not limited to the vessel, its equipment, machinery, accessories, personal effects, tenders, support vessels, motors) or for any injury, illness or death of any party including any passengers on the vessel arising out of the performance of this contract.

The Customer acknowledges that there are inherent dangers involved in sail/power boating and understands and by accepting these conditions, the Customer agrees to hold the Company and its personnel free of liability in the event of an accident, death, injury or loss of or damage to property.

The Customer shall indemnify the Company in respect of all liabilities incurred by the Company when acting as a port agent or liner agent .or booking agent on the Customer's behalf. This indemnity shall include but not be limited to all third party claims, charges, losses, damages, taxes, duties and expenses that the Company may incur during the performance of the Services, notwithstanding any termination of the contract between the Customer and the Company. This indemnity shall not extend to matters arising by reason of wilful misconduct of the Company.

17. FORCE MAJEURE

Neither party shall be liable if prevented from fulfilling any of its obligations by any incident of Force Majeure including an Act of God, Strikes, Lockout, Act of Government or any occurrence whether similar or dissimilar

18. GENERAL

You shall not assign the benefits of this agreement to any third party.

19. BINDING EFFECT OF TERMS AND CONDITIONS

On signing the booking form and/or quotation or proforma invoice you accept and are bound by these terms and condition.